

22STCV19406 22STCV19406

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Hernandez v. Dean Enterprises, et al., Case No. 22STCV19406

ORDER ON MOTIONS TO COMPEL FURTHER RESPONSES

1. Defendants Dean Enterprises and Iris M. Whiting, Trustee of the Iris M. Whiting 2006 Revocable Trust dated January 13, 2006's Motion for Order Compelling Further Responses to Special Interrogatories [Set Two] is GRANTED. Plaintiff is to provide further, Code-compliant responses within 20 days from the date of the hearing. Sanctions are awarded in the reduced amount of \$1,040 and are payable within 30 days of the date of the notice of ruling.

2. Defendants Dean Enterprises and Iris M. Whiting, Trustee of the Iris M. Whiting 2006 Revocable Trust dated January 13, 2006 Motion for Order Compelling Further Responses to Request for Production of Documents [Set Two] is GRANTED. Plaintiff is to provide further, Code-compliant responses within 20 days from the date of the hearing. Sanctions are awarded in the amount of \$917.50 and are payable within 30 days of the date of the notice of ruling.

Background

On June 14, 2022, Plaintiff Adela Bautista Hernandez ("Plaintiff") filed this action against Defendants Dean Enterprises ("Dean"), Iris M. Whiting, Trustee of the Iris M. Whiting 2006 Revocable Trust dated January 13, 2006 ("Whiting") (collectively, "Defendants") and Does 1-50 for negligence/premises liability.

On May 14, 2026, Defendants filed the instant motions to compel further responses to special interrogatories, set two, and request for production of documents, set two. Defendants also request sanctions. Plaintiff has not opposed the motions. For the reasons stated herein, the motions are granted.

1. Motion to Compel Furthers Re: Special Interrogatories

Legal Standard

"[T]he propounding party may move for an order compelling a further response if the propounding party deems that . . . (1) An answer to a particular interrogatory is evasive or incomplete[,] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[, and/or] (3) An objection to an interrogatory is without merit or too general." (Code Civ. Proc., § 2030.300, subd. (a).)

The moving party must demonstrate a “reasonable and good faith attempt” at an informal resolution of each issue presented. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2030.300, subd. (b)(2).)

Notice of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. . .” (Code Civ. Proc., § 2030.300, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy, supra, 58 Cal.2d 210 at 220-221.)

“The court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Discussion

Defendants’ move the court for an order compelling Plaintiff to provide further responses to Form Interrogatories, Set Two. Defendants also seek sanctions against Plaintiff and counsel of record in the amount of \$2,020.

Plaintiff provided objections-only responses to the special interrogatories. Plaintiff has failed to oppose the instant motion and, as such, has failed to meet her burden of justifying any of her objections.

The motion is granted. Plaintiff is to provide further, Code-compliant responses to Special Interrogatories, Set Two, Nos. 1-17 within 20 days from the date of the hearing.

Sanctions

Defendants seek sanctions against Plaintiff and her counsel of record in the amount of \$2,020.00 [calculated as follows: 5 hours preparing the motion, plus 3 hours analyzing Plaintiff’s opposition, preparing the reply, and attending hearing at \$245.00 per hour, plus \$60.00 total filing fees].

Utilizing a Lodestar approach, and in view of the totality of the circumstances, including the fact that no opposition was filed, the Court finds that the total and reasonable amount of attorney’s fees and costs incurred for the work performed in connection with the pending motion is \$1,040 (4 hours at \$245/hour plus \$60 filing fee).

2. Motion to Compel Furthers Re: Request for Production of Documents

Legal Standard

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (Code Civ. Proc., § 2031.310(c).)

A motion to compel a further response to a request for production must be noticed within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. Otherwise, the propounding party waives any right to compel further response to the

inspection demand. (See Code Civ. Proc., § 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) The motion must also be accompanied by a declaration stating facts showing a reasonable and good faith attempt at an informal resolution of any issue presented by it. (See Code Civ. Proc., §§ 2016.040, 2031.310(b)(2).) Finally, a motion to compel further responses to inspection demands must be accompanied by a separate document that sets forth each item to which further response is requested and the factual and legal reasons for compelling it. (Cal. Rules of Court, rule 3.1345(a).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (See Code Civ. Proc., § 2031.310(b)(1).) It is not necessary for the motion to show that the material sought will be admissible in evidence. "Good cause" may be found to justify discovery where specific facts show that the discovery is necessary for effective trial preparation or to prevent surprise at trial. (See *Associated Brewers Dist. Co. v. Superior Court* (1967) 65 Cal.2d 583, 586-588; see also CCP §§ 2017.010, 2019.030(a)(1) (Information is discoverable if it is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence and it is not unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive.); *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1611-1612 (noting a party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence).)

Sanctions are mandatory "against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310(h).)

Discussion

Defendants move the court for an order compelling Plaintiff to provide further responses to Request for Production of Documents, Set Two. Defendants also seek sanctions against Plaintiff and her counsel of record in the amount of \$1,530.

Plaintiff provided objections-only responses to the request for production of documents. Plaintiff has failed to oppose the instant motion and, as such, has failed to meet her burden of justifying any of her objections.

The motion is granted.

Sanctions

Defendants seek sanctions against Plaintiff and her counsel of record in the amount of \$1,530 [calculated as follows: 3 hours preparing the motion, plus 3 hours analyzing Plaintiff's opposition, preparing the reply, and attending hearing at \$245.00 per hour, plus \$60.00 total filing fees.]

Utilizing a Lodestar approach, and in view of the totality of the circumstances, including the fact that no opposition was filed, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$917.50 (3.5 hours at \$245/hour plus \$60 filing fee).